



GOVERNANCE

RIGHT TO INFORMATION

MODULE - 15

RIGHT TO INFORMATION

1 The Right to Information Law of 2005 signals a radical shift in our governance culture and permanently impacts all agencies of state.

2 The effective implementation of this law depends on three fundamental shifts:

i From the prevailing culture of secrecy to a new culture of openness.

ii From personalised despotism to authority coupled with accountability.

iii From unilateral decision making to participative governance.



THE STRUGGLE FOR RIGHT TO INFORMATION

- 1 Like many other acts that empower the citizenry, this act had its own share of hurdles that it encountered through its years of drafting and formation.
- 2 Thousands of activists put themselves through a **relentless struggle** to ensure that this act came into being.
- 3 It **began** with the relentless fight by the civil society groups for **People's Rights in Rajasthan** that finally in **1997** resulted in the enactment of RTI Act in the state



THE STRUGGLE FOR RIGHT TO INFORMATION

4 It was alleged during the 1990s that there was a rampant spread of corruption and malpractices in the implementation of poverty alleviation schemes in Rajasthan.

5 The malpractices were brought to light by The Mazdoor Kisan Shakti Sangathan (MKSS), a social movement in the state, which was initially seeking to understand the reasons behind the non-payment of minimum wages for workers in Rajasthan.

6 The movement was spearheaded by renowned social activists, Aruna Roy, Nikhil Dey and Changan Singh of the MKSS, with the extensive support of the common masses



THE STRUGGLE FOR RIGHT TO INFORMATION

7 The government had no other option than **passing the law** and finally obliged in the year **2000**.

8 This became a shot in the arm for MKSS as they began the process to realize the enactment of RTI throughout India

9 MKSS paved the way for the formation of the National Campaign for Peoples Right to Information (NCPRI).

10 Many organizations and human rights movements aligned themselves with NCPRI to bring about RTI Act.



THE STRUGGLE FOR RIGHT TO INFORMATION

11 In December, 2004, the new Bill on RTI Act was introduced in the Parliament.

12 The Bill was approved by the Lok Sabha on 11 May 2005 and by the Rajya Sabha on 12 May.

13 The Indian President's approval was obtained on 15 June, and the Bill formally became an Act.

14 It was published in the Government Gazette on 22 June, and from 12 Oct 2005, it was implemented.

15 Everyone has the right to freedom of opinion and expression. This right includes freedom to hold opinions without interference and to seek, receive and impart information and ideas through any media and regardless of frontiers.



EVOLUTION OF RIGHT TO INFORMATION (RTI) (INDIA)

- 1** The Constitution of India does not provide for the RTI as a fundamental right. However, it is inherent, within the scope of Article 19(1)(a) and Article 21.
- 2** As a party to the Universal Declaration on Human Rights India acknowledges Article 19 of the declaration, which talks of the right to receive and impart information.
- 3** Supreme Court in various cases, such as state of UP vs Raj Narain, SP Gupta vs UOI, Dinesh Trivedi vs. UOI, Bhopal gas leak case, has asserted that the idea of "Right to Know" is a fundamental right.
- 4** Mathew Commission (1982): Emphasized the Right to know.
- 5** 5th Pay Commission (1994-97): Recommended the abolition of the Official Secrets Act and introduction of RTI Act.



K. K. Mathew

EVOLUTION OF RIGHT TO INFORMATION (RTI) (INDIA)

- 6** 1995: The Press Council of India brought out the first blueprint of a model RTI Act
- 7** 1997: Shourie Committee - another draft on RTI.
- 8** 2000: Rajasthan and Karnataka enacted their own RTI Acts.
- 9** 2001: Delhi enacted its RTI Act
- 10** 2002: Maharashtra and Assam enacted their own RTI Acts.
- 11** 2002: Freedom of Information act was introduced and enacted, but it was never notified,
- 12** 2005: RTI finally enacted and got notified and came into force.



SIGNIFICANCE OF RIGHT TO INFORMATION (RTI)

- 1 RTI reinforces the idea of popular sovereignty.
- 2 It promotes openness, transparency and accountability in governance.
- 3 It is one of the viable weapons to combat corruption.
- 4 The proper use of RTI will check the arbitrary nature or high-handedness of officials.
- 5 It bridges the gap between providers and recipients of public services.



SIGNIFICANCE OF RIGHT TO INFORMATION (RTI)

- 6 It paves the way for a participative democracy by including the citizens in the decision making process.
- 7 By enhancing participation, RTI strengthens grass-roots democracy.
- 8 It serves as a device to access to other rights provided by law.
- 9 It creates an amicable ambience for transparency in government organizations.



SIGNIFICANCE OF RIGHT TO INFORMATION (RTI)

- 10 Results in effective functioning of the government thereby enhancing predictability.
- 11 Access to information can empower the poor and the weaker sections of society to demand and get information about public policies and actions, thereby leading to their welfare.
- 12 Promotes administrative reforms by exposing weaklings and voids in the system.



RIGHT TO INFORMATION ACT (2005)

The Act specifies that citizens have a right to:

- i Request any information (as defined)
- ii Take copies of documents.
- iii Inspect documents, works and records.
- iv Take certified samples of materials of work.
- v Obtain information in form of printouts, diskettes, floppies, tapes, video cassettes or in any other electronic mode or through printouts.



INFORMATION DEFINED

According to the law, the term 'information' has been defined as any material in the form of records, documents, memos, e-mails, opinions, advices, press releases, circulars, orders, logbooks, contracts, reports, papers, samples, models, data in any electronic form and information relating to any private body which can be accessed by a public authority under any other law for the time being in force.



PROCESS

- 1** Under the Act, all authorities covered must appoint a Public Information Officer (PIO) within their organization.
- 2** Any person may submit a request to the PIO for information in writing. It becomes the PIO's duty to provide information to the person who has requested for the information.
- 3** If the request involves or pertains to another public authority, it will be the concerned PIO's responsibility to transfer/forward the request to a PIO of the concerned organization, within 5 days of receipt.



PROCESS

4 In addition, every public authority is required to designate Assistant Public Information Officers (APIOs) to receive RTI requests and appeals for forwarding to the PIOs of their public authority.

5 The citizen making the request is not obliged to disclose any information except his/her name and contact particulars.



PROCESS

The Act specifies **time limits** for replying to the request:

- 1** If the request has been made to the **PIO**, the reply is to be provided **within 30 days** of receipt.
- 2** If the request has been made to an **APIO**, the deadline **gets an additional 5 days**, and thus the reply is to be **given within 35 days** of receipt.
- 3** If the **PIO transfers the request to another public authority** (better concerned with the information requested), the time allowed to reply is **30 days but computed from the day after it is received by the PIO of the transferee authority**.



PROCESS

- 4 For information concerning corruption and human rights violations by scheduled security agencies (those listed in the second schedule to the act), responses have to be provided within 45 days post the approval of the Central Information Commission.
- 5 However, if the life or liberty of any person is involved, the PIO is expected to reply within 48 hours.
- 6 If the information is not provided within the required period, it can be treated as a deemed refusal of information.
- 7 Refusal with or without reasons may be ground for appeal or complaint.
- 8 Further, information not provided within the time prescribed is to be provided free of charge.



EXEMPTIONS

The following things are exempted from disclosure:

1 Sensitive information, disclosure of which would prejudicially compromise the sovereignty and integrity of India; the security; strategic, scientific or economic interests of the State; relation with a foreign State or which may lead to the incitement of an offence.

2 Information which has been forbidden to be published by any court of law or tribunal or any disclosure that would constitute to contempt of court.

3 Information, the disclosure of which would cause a breach of privilege of Parliament or the State Legislature.



EXEMPTIONS

4 Information including commercial confidence, trade secrets or intellectual property, the disclosure of which would harm the competitive position of a third-party, unless the competent authority is satisfied that larger public interest warrants the disclosure of such information.

5 Information available to a person in his/her fiduciary relationship, unless the competent authority is satisfied that the larger public interest warrants the disclosure of such information.

6 Information received in confidence from foreign Governments.



EXEMPTIONS

- 7 Information, the disclosure of which would endanger the life or safety of any person(s) or identify the source of information or assistance given in confidence for law enforcement or security purposes.
- 8 Information which would impede the process of investigation or apprehension or prosecution of offenders.
- 9 Cabinet papers including records of deliberations of the Council of Ministers, Secretaries and other officers.
- 10 Information which relates to personal information, the disclosure of which has no relationship to any public activity or interest, or which would cause unwarranted invasion of the privacy of an individual. However, such information, which cannot be denied to the Parliament or a state legislature, is not exempted under this purpose.



EXCLUSIONS

The following investigation and intelligence agencies are exempted from the purview of this law:

1

Central Intelligence and Security agencies specified in the Second Schedule like

- IB
- RAW
- Central Bureau of Investigation (CBI)
- Directorate of Revenue Intelligence
- Central Economic Intelligence Bureau
- Directorate of Enforcement
- Narcotics Control Bureau
- Aviation Research Centre
- Special Frontier Force
- BSF
- CRPF
- ITBP



EXCLUSIONS

- CISF
- NSG
- Assam Rifles
- Special Service Bureau
- Special Branch (CID), Andaman and Nicobar
- The Crime Branch-CID-CB, Dadra and Nagar Haveli and
- Special Branch, Lakshadweep Police
- Agencies specified by the State Governments through a notification will also be excluded.

2

This exclusion is however not absolute and these organizations are required to provide information, when accused of corruption and/or human rights violations.



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